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Navigating Sri Lanka's Digital Frontier:

A report on Stakeholder Insights, Institutional Capacity, and the Future of Digital Rights

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Executive Summary

This report is the culmination of an intense mapping exercise designed to explore the deeply intertwined realities of cybersecurity, online crime, and digital rights in Sri Lanka. Our digital space has transitioned from a technical luxury into our primary "real world". However, this rapid transformation has left a glaring gap between the daily vulnerabilities of regular citizens and the state's institutional capacity to protect them.

Our key findings reveal a perfect storm of systemic failures across the digital ecosystem:

- **Legislative Ambiguity and Contentious Enforcement:** The highly controversial Online Safety Act (OSA) is technically active but remains hobbled and largely stagnant due to the non-establishment of its regulatory commission, sparking severe doubts about its ability to deliver on its intended expectations. Meanwhile, older frameworks like the ICCPR Act and PTA are actively misused to target political opposition while entirely stripping away magistrates' power to grant bail.
- **Institutional Bottlenecks:** Primary defense bodies are structurally overwhelmed. Sri Lanka CERT is a lean operation of just 50 personnel drowning under 14,000 cases annually, while the Computer Crime Investigation Division (CCID) remains a severe geographic bottleneck that frequently exposes victims to a culture of re-victimization, systemic delays, and privacy breaches.
- **Corporate Neglect:** Multinational tech corporations operate as a "tech oligarchy," treating Sri Lanka with profound neglect. Their content moderation frameworks are entirely context-agnostic, lacking the deep localized linguistic and cultural understanding required to counter sophisticated AI deepfake scams, targeted hate speech, and online gender-based violence (GBV).

To bridge this chasm, this report advocates for a radical shift away from overbroad, reactive legislation. Instead, it outlines a strategic path forward centered on early, empathy-driven digital literacy in school curricula, the urgent operational decentralization of law enforcement, and the formation of a unified South Asian regional coalition to forcefully hold global tech monopolies accountable.

1) Introduction: The Current Digital Landscape

As we look at the contemporary digital landscape in Sri Lanka, it is clear that the boundary between our physical and virtual realities has completely evaporated. Cyberspace is no longer merely a tool for communication or commerce; it has become the fundamental arena where fundamental human rights such as privacy, expression, assembly, and dignity are either realized or violently suppressed.

However, our rapid digital transition has outpaced our collective readiness, creating a profoundly lopsided environment. On one hand, content creators, activists, and everyday users are utilizing these platforms to expand democratic spaces and generate livelihoods. On the other hand, they are being met with an evolving, highly sophisticated threat matrix. We are seeing a massive surge in financial phishing attacks, identity theft, and organized international syndicates exploiting local bank accounts. Worse yet, the rise of accessible AI tools has weaponized the digital space, resulting in convincing deepfake investment scams mimicking public leaders and the localized traumatization of young school children through AI-generated nudes.

The critical issue we face is that the impact of digital content is immediate, massive, and highly unpredictable, leaving victims with almost no time or space to respond. When online gender-based violence—which stakeholders estimate is now exponentially higher online than offline—strikes, it leverages deeply entrenched nationalistic and cultural norms to instantly destroy a person's reputation.

As a research collective, it is evident to SPHERE that our current trajectory is unsustainable. We cannot address these systemic issues through a fragmented approach or by passing vague, heavy-handed laws that chill free speech and induce self-censorship. To safeguard both our freedoms and our safety, we must critically evaluate the capacity of our local institutions, confront the indifference of global platforms, and reimagine an equitable, rights-respecting digital framework for all Sri Lankans.

2) Research Rationale and Scope

As an institution deeply embedded in this space, SPHERE initiated this study to document a critical inflection point in Sri Lanka's digital evolution. The rapid push toward a digital society has left our civil liberties vulnerable, caught between the rise of sophisticated cyber threats and heavy-handed legislative responses. To us, civil liberties mean more than just abstract freedom of expression; they fundamentally encompass the right to online safety and digital security as well. With the rollout of frameworks like the Online Safety Act (OSA) and the postponed Personal Data Protection Act (PDPA), it became urgent to look beyond the text of these laws and map how they actually impact human rights, safety, and institutional accountability in the real world.

3) Methodology

Primary Research: Stakeholder Consultations

To build a holistic, multi-dimensional view of this landscape, we conducted 14 in-depth, qualitative interviews with a diverse ecosystem of stakeholders who navigate these challenges daily:

- **Lawmakers and Policy Voices:** Members of Parliament (MPs) who provided critical legislative perspective on the political intent behind regulations, acknowledging parliamentary recognition of urgent institutional reforms, and explicitly noting the alarming upsurge of hate and crimes in the online space.
- **Legal Professionals:** Frontline defense attorneys and members of lawyers' associations who unpacked constitutional loopholes, bail restrictions, and the systemic weaponization of existing laws.
- **State and Law Enforcement Representatives:** Inside experts and technical officers from Sri Lanka CERT and the National Child Protection Authority (NCPA) who provided candid insights into their operational realities and systemic mandates.
- **Civil Society Advocates and Fact-Checkers:** Researchers and digital rights specialists with deep operational roots in organizations like Hashtag Generation, Verité Research, and Factrescendo. Participating either in their independent capacities or drawing from their past and present institutional experiences, these experts shared an invaluable vantage point on state surveillance, linguistic gaps in content moderation, and the underlying mechanics of online disinformation.
- **Content Creators and Activists:** Individuals who brought invaluable lived experiences to the table, sharing personal testimonies regarding online gender-based violence, targeted smear campaigns, and the raw institutional hurdles faced when seeking justice.

3.3 Secondary Research: Technical & Institutional Review

Recognizing that stakeholder testimonies only tell half the story, these human insights were paired with a rigorous technical review of local institutions and available digital resources. This component involved:

- **Institutional Capacity Audits:** The infrastructure of primary defense bodies, such as the Sri Lanka Computer Emergency Readiness Team (CERT) and the Computer Crime Investigation Division (CCID), was closely examined. Severe staff shortages, resource constraints, and geographic bottlenecks leading to uninvestigated cases were mapped accordingly (Note: Furthermore, it must be noted that certain state institutions proved

exceptionally hard to reach, which introduced significant difficulties and delays when we attempted to gather comprehensive baseline data).

- Platform Mechanism Analysis: The actual efficacy of the reporting portals and automated moderation systems utilized by multinational tech giants was evaluated. This included analyzing how their "context-agnostic" approach and lack of localized Sinhala and Tamil resources fail to protect local users.

4) Summary of Research Findings

4.1) Legal & Regulatory Dilemmas: Security vs. Civil Liberties

In dissecting Sri Lanka's legal architecture, our research reveals a dangerous disconnect: our laws are either systematically weaponized to suppress fundamental freedoms or left operationally paralyzed when victims desperately need them.

A. The Online Safety Act (OSA) Paradox

The execution of the OSA No. 9 of 2024 stands as a deeply contested and highly problematic addition to our legal landscape. Although the act is technically active, it is entirely mired in deep systemic ambiguity and severe structural flaws, sparking immense concern among civil society and legal experts. The act has utterly failed to deliver on its protective expectations or serve as a practical remedy for users. Instead, its overbroad, vague definitions of "prohibited statements" create a dangerous chilling effect, fueling widespread fears that it will be used to trigger self-censorship and suppress legitimate digital expression.

The practical dysfunction of the act is stark: victims who have attempted to seek legal remedy under the OSA report receiving absolutely no meaningful relief or protection. Crucially, the oversight commission required for its execution has not been appointed by any President, leaving the framework structurally hollow, and currently, an official revision process is ongoing. Furthermore, because the act's framework is fundamentally ambiguous and poorly structured, multinational platforms like Meta face immense friction and struggle to respond effectively to legal requests or complaints framed around its provisions.

To better understand the origins of this ambiguity, SPHERE filed a Right to Information (RTI) application back in 2024 seeking transparency regarding the composition of the initial act's drafting committee. Strikingly, upon reviewing the state-provided list of committee members, many of the listed individuals explicitly refused and denied their involvement in the final version. These individuals cited that they had actually resigned in the early stages of the process, well before the act was finalized, raising severe questions about the accountability and legitimacy of the final text.

Encouragingly, the broader concerns surrounding this environment are beginning to be observed by lawmakers; in our consultation with a Member of Parliament, they acknowledged that parliamentarians have observed the massive upsurge of hate and crimes in the online space and recognized that substantial institutional reforms are required. Crucially, they expressed an explicit expectation to collaborate with civil society to draft better, more precise legislation moving forward.

Importantly, our consultations with legal experts revealed that the legal community is not collectively demanding a complete removal of digital regulation; rather, multiple lawyers see a clear practical need for a structured legal framework to govern online spaces. The consensus, however, is that any such framework needs to be exact, meticulously drafted, and rooted in democratic principles rather than political control.

Despite the act's severe functional deficits and flawed rollout, some caution against an outright repeal. They point out that specific segments, such as Sections 20-21, outline crucial protections against non-sexual online harms and privacy violations such as sharing a private photo without consent that remain completely unaddressed by older penal statutes.

B. The Weaponization of the ICCPR Act

While the ICCPR Act No. 56 of 2007 was originally designed to champion civil rights and curb communal hate speech, our consultations reveal it has been completely turned on its head. It is frequently weaponized by state actors to target political opposition and minority voices. Legal practitioners highlighted a devastating structural flaw: magistrates are stripped of the power to grant bail under the ICCPR Act, ensuring that accused individuals face prolonged, punitive detention before their cases are ever properly evaluated. Furthermore, local police routinely ignore the international Rabat Plan of Action—which requires strict thresholds for defining incitement—and instead rush to apply the ICCPR Act or influence victims toward the OSA out of institutional convenience or political alignment.

C. The Personal Data Protection Act (PDPA) Blindspot

Passed in 2022, the PDPA was meant to grant citizens absolute sovereignty over their digital footprints. However, the state has repeatedly delayed its enforcement, shifting the compliance deadline all the way into late 2025. Because the Data Protection Authority (DPA) commission is non-functional, we are trapped in a state of legal paralysis. For example, when high-profile corporate data breaches occur (such as the massive Cargills data breach), the police are legally paralyzed and fundamentally unable to prosecute or take effective action against the compromised entities.

4.2) Institutional Capacity & Enforcement Gaps: The Reality of Seeking Justice

When a citizen moves past the legal texts and attempts to report a digital crime, they hit a wall of under-resourced bureaucracies and systemic institutional friction.

A) The CCID Geographic and Cultural Bottleneck

The Computer Crime Investigation Division (CCID) remains structurally restricted, operating a limited network of just seven functional units across the island specifically in Colombo, Kandy, Wariyapola, Jaffna, Matara, Anuradhapura, and Mahaoya. For an ordinary citizen living outside these specific hubs, seeking justice still requires traveling immense distances across provincial lines. This centralized deficit leaves thousands of rural cybercrime and online harassment cases uninvestigated, effectively locking victims out of localized legal remedies.



Figure : Geographical placement of CCID units of Sri Lanka police

Source - CCID Colombo

Worse than the physical barrier is the cultural hostility within these centers. Live experience testimonies from victims and law undergraduates reveal a stark pattern of institutional re-victimization. Local desks routinely reject complaints of online harassment if they don't involve immediate physical harm. Women are subjected to public shaming and ridicule by officers who lack basic gender-sensitivity training.

Furthermore, officers frequently demand complex technical assets from the victim, such as deep-layer application links that are difficult for an amateur to extract. In multiple instances, police tried to halt the investigations entirely unless the victim provided the link themselves. Shockingly, the CCID has also been cited for flagrantly violating the Victim and Witness Protection Act by openly exposing complainants' home addresses to third parties and the media.

B. The Structural Overload of Sri Lanka CERT

Sri Lanka CERT is locked in a perpetual battle against numbers. Operating with a tiny staff of roughly 50 individuals including 10 non-technical personnel CERT is forced to process an overwhelming 14,000 cyber security cases every year.

Because of this resource crisis, CERT's public technical assistance is highly constrained. They lack an advertising budget to broadcast their helpline to rural areas and have zero legal power to compel other government bodies to implement their critical security patches, leaving state websites wide open to repeat hacks.

Incident Type	Number of Reported Incidents	Percentage of the Total
Social Media Incidents	20,033	98.44%
Scams	98	1.56%
Financial/Email Frauds	58	
DoS/DDoS	44	
Website Compromise	37	
Ransomware	31	
Phishing	20	
Malicious Software issues	10	
Server Compromise	10	
Phone Hacking	9	
Total	20,350	100%

*Table : Reported Cyber Security Incidents to Sri Lanka CERT|CC in 2024
Source : Sri Lanka CERT|CC*

C. The NCPA's Enforcement Dilemma

The National Child Protection Authority (NCPA) operates a dedicated cybercrime unit under its 24-hour helpline (1929), dealing with severe digital trauma, including child victims experiencing suicidal ideation due to the online exploitation of their images.

The NCPA strictly relies on Section 286 of the Penal Code, which criminalizes the possession or sharing of child nudes with hard sentences of 2 to 10 years. They deliberately instruct regional police never to use the older Obscene Publications Act, because that outdated law treats anyone appearing in obscene content as a criminal, effectively penalizing the child victim and handing perpetrators an easy legal out.

However, the NCPA faces a profound modern dilemma: children themselves are increasingly becoming the primary perpetrators of digital abuse. Driven by accessible technology, minors aged 12 and above are creating and circulating AI deepfake nudes of their classmates, completely unaware that they are crossing the line into criminal liability. Because the forensic analysis required to verify deepfakes must be sent out to external institutions like the University of Moratuwa or the Government Analyst's Department, verification stretches across months of delays. The NCPA is thus caught in a painful paradox: enforcing the law requires prosecuting a child peer, which directly conflicts with their core mandate to protect the best interest of the child.

4.3) Global Tech Monopolies and the "Tech Oligarchy"

A recurring theme across our stakeholder interviews is the absolute impunity with which multinational tech platforms operate within South Asia, behaving as an unaccountable "tech oligarchy".

Companies like Meta, TikTok, and YouTube extract massive user engagement from Sri Lanka, yet refuse to invest in regional or local offices. This absence of physical corporate representation means that obtaining basic data or enforcing localized emergency content takedowns requires navigating complex, time-consuming international court orders, which local law enforcement lacks the capacity to execute.

Furthermore, their content moderation is deeply flawed. It relies heavily on automated AI algorithms and outsourced BPO companies that are entirely context-agnostic. These systems completely fail to understand the linguistic nuances of Sinhala and Tamil, or the local cultural codes of nationalism that are weaponized to drive online gender-based violence.

Platform policies are highly erratic; for instance, while Meta and TikTok show basic willingness to coordinate on content safety during election cycles, YouTube is explicitly called out by local content creators and civil society as being completely non-responsive and uncollaborative. Sri

Lankan users are effectively stripped of their status as valued consumers, reduced instead to a data product left entirely unprotected against systemic digital harms.

5. The Roadmap Forward: Strategic Recommendations

To build a digital space that balances absolute civil safety with unyielding fundamental human rights, Sri Lanka must abandon overbroad, punitive legislation and focus instead on institutional, educational, and structural transformations. Based on our analysis, SPHERE proposes the following roadmap:

5.1 Holistic Educational and Literacy Overhauls

- **Empathy-Driven Curricula:** Integrate digital literacy directly into the core national school syllabus starting from primary education. This must move past mechanical computer training to instill critical thinking, information verification, digital hygiene, and real empathy, teaching youth the real-world legal and mental consequences of spreading unverified content.
- **Institutionalize First-Contact Counseling:** Expand Sri Lanka CERT's training model to systematically educate teachers within Vidyapeeta/Teachers colleges. Establish independent counseling units directly inside schools to serve as the immediate, trusted first contact point for student victims of online harassment, bypassing the immediate trauma of police stations.

5.2 Structural Law Enforcement Re-engineering

- **Decentralization of the CCID:** Establish at least one fully equipped, operationally active Computer Crime Investigation Division center per district to break the centralized Colombo-centric bottleneck.
- **Mandatory Gender-Sensitive Frameworks:** Legally mandate that all online gender-based violence and sexual harassment complaints are processed and facilitated exclusively by officers of the same gender. Implement strict privacy firewalls within police media divisions to stop the illegal leak of complainants' identities and addresses to public media networks.
- **Operational Boundary Clarity:** Formalize a transparent legislative protocol defining the exact job roles and complaint-handover boundaries between Sri Lanka CERT and the CCID to streamline institutional responses.

5.3 Legislative Revisions and Democratic Oversight

- **Commit to a Total Repeal for a Fresh Start:** The Online Safety Act must be completely repealed to respect democratic values and rectify its flawed, rushed, and non-transparent drafting process. The government should abandon piecemeal reform and commit to a fresh, rights-based legislative process built on public consultation.
- **Shift from Criminal Law to Regulation:** A new criminal approach is rejected because existing laws (like the Penal Code) already contain sufficient provisions for criminal prosecution. Instead of risking double jeopardy and selective prosecution with redundant criminal statutes, the state should adopt a comprehensive, rights-based regulatory framework. This framework should define civil and administrative standards to guide user behavior online while simultaneously enforcing platform compliance and corporate accountability.
- **Institutionalize Multi-Stakeholder Collaboration:** Future frameworks must be shaped by formal working groups uniting lawmakers, Civil Society Organizations (CSOs), and legal experts to ensure precise, democracy-focused text based on public review.
- **Replace Vague Terminology:** Subjective and broad terms like "false statement" must be replaced with internationally recognized, precise criteria defining strict thresholds for actual "misinformation" and "disinformation" to eliminate arbitrary abuse.
- **Enact Civil Society Co-Governance:** Future oversight boards must be independent commissions featuring mandatory representation from CSOs, academic researchers, and tech experts appointed through a multi-stakeholder process, ensuring all administrative actions remain challengeable in court.

5.4 Geopolitical Sub-Regional Coalitions

- **Form a South Asian Digital Alliance:** Recognizing that Sri Lanka's small market size gives us zero leverage against tech monopolies, the state should actively spearhead an international coalition with neighboring South Asian nations that share similar cultural and linguistic vulnerabilities. By unifying our regulatory weight, we can collectively force giants like Meta, TikTok, and Google to establish local physical representation, adopt transparent algorithms, and invest in accurate, context-aware Sinhala and Tamil content moderation.